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File No.: EXP202308451

RESOLUTION OF WARNING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 15, 2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A.).

The facts brought to the attention of this authority:

The complainant states that A.A.A. has a video surveillance system consisting of multiple cameras installed on the exterior terrace of their residence. They assert that the cameras focus on the access to the complainant's parking area and that they record continuously, affecting individuals who access it. Furthermore, they indicate that the informational signs alerting to the existence of the video surveillance system do not comply with current regulations.

Along with the complaint, they provide 3 photographs in which the following is observed:

- A community patio, bordered by buildings, with outdoor parking spaces, some of which have manual parking barriers, as well as a post to prevent access, from which a sign hangs. The ground floors of the buildings bordering the common space have garage entrances or storage rooms closed with a lift door. On the first floor of one of the buildings, a terrace is observed, on the railing of which, from the outside, there is a video surveillance camera.
- A close-up of the aforementioned terrace. On the outer side of the railing, there is a video surveillance camera oriented towards the previously described common space. Additionally, another camera is observed installed at the top of the exterior facade, next to the window providing access to the terrace from inside the residence, also oriented towards the same space. Above this window, a sign indicating a video-monitored area from the installing company is visible, as well as an informational sign about video surveillance.
- A close-up of the post that prevents access in the previously described common parking space. This post has a video-monitored area sign that is not completed. Thus, the spaces corresponding to the identification of the responsible party, the possibility of exercising rights, or the location to obtain more information are empty.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to A.A.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The notification of the forwarding of the complaint, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on September 8, 2023, as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On September 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On February 3, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringement of Articles 6.1 and 13 of the GDPR as classified in Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative

Procedure of Public Administrations (hereinafter, LPACAP), occurred on February 18, 2025, as noted in the acknowledgment of receipt in the file.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: There is a video surveillance system consisting of two cameras located on the private terrace of a residence. One of the cameras is installed on the wall of the exterior facade, while the other is located on the railing of the terrace, on its outer side.

SECOND: The cameras that make up the video surveillance system focus on a community parking area that has both outdoor parking spaces and access to closed storage rooms or garages owned by third parties.

THIRD: The video surveillance system lacks the necessary authorization from the homeowners' association for the capture of common areas or elements.

FOURTH: In the video-monitored area, there are two informational signs that are incomplete. One is located on the aforementioned terrace, while the other is situated in the community parking area. The signs therefore lack the necessary information regarding the identity of the responsible party, the possibility of exercising rights in data protection matters, or the location to obtain more information.

FIFTH: The responsible party for the video surveillance system is A.A.A. with NIF ***NIF.1.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the proceedings and the concurrent circumstances, this warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

An image is a personal data

Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Article 4.7 of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and, therefore, its protection is subject to this Regulation.

Images captured by a system of cameras or video cameras are personal data, and thus their processing is subject to data protection regulations.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as A.A.A. carries out, among other processes, the collection and storage of personal data by having a video surveillance system that captures images of natural persons.

A.A.A. carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity under Article 4.7 of the GDPR.

IV

Data protection regulations

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data is considered lawful.

Furthermore, the processing of personal data is subject to all the principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of ensuring the safety of persons and property, as well as their facilities.

This means that in a specific processing operation, only the relevant personal data that is necessary for the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

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In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras cannot obtain images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces, as it would contravene Article 5 of the GDPR, as previously indicated.

The capture of images in common areas or elements of homeowners' associations requires the agreement of the homeowners' meeting in the terms provided for in Law 49/1960, of July 21, on horizontal property (hereinafter LPH).

Once this requirement is met, the homeowners' association, as the data processing responsible party, will be subject to the remaining obligations imposed by data protection regulations. The cameras may only capture the common areas of the community, and recording images of the public road is not feasible, except for a minimum strip of the accesses to the property. Images of adjacent land and homes or any other external space may not be captured. In this latter case, if adjustable cameras and/or with zoom are used, the installation of privacy masks will be necessary to prevent such recording.

The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the community from compliance with data protection legislation.

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V

Obligations regarding video surveillance

The processing of images through a video surveillance system, to be in compliance with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot be reasonably achieved by other means, in accordance with Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is provided in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the responsible party, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information will be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible

location, and at a minimum, at the accesses to the monitored areas, whether they are indoors or outdoors. If the monitored space has several accesses, the distinctive sign of the monitored area must be placed at each of them.

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This information must be provided in advance -considering Article 39 of the GDPR-. The objective is to clarify the context of surveillance.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the necessary security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set out in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

VI

Unfulfilled Obligation. Lawfulness of Processing

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Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and

freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with regard to processing for compliance with paragraph 1, points c) and e), by laying down more precise specific requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, points c) and e), shall be established by:

a) Union law, or

b) the law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, point e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the data subjects affected; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures for processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.

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4. When the processing for a purpose other than that for which the personal data was collected is not based on the consent of the data subject or on Union or Member State law that constitutes a necessary and proportional measure in a democratic society to safeguard the objectives indicated in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data was initially collected, shall take into account, among other things:

a) any relationship between the purposes for which the personal data was collected and the purposes of the intended further processing;

b) the context in which the personal data was collected, in particular with regard to the relationship between the data subjects and the data controller;

c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;

d) the possible consequences for the data subjects of the intended further processing;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization.

Furthermore, as indicated, the installation of a video surveillance system in common areas or that captures common elements of a property requires prior agreement from the community of property owners, as derived from Articles 6 and 17.3 of the LPH. The community of property owners will be considered the data controller.

In this case, the video surveillance system of A.A.A. consists of two cameras located on the exterior of their home, one of which is positioned on the external part of the railing of their terrace. The cameras focus on a community parking area that includes both outdoor parking spaces and access to storage rooms or closed garages owned by third parties. In short, the video surveillance system captures common areas or elements, as well as images of individuals accessing them without the requisite authorization from the community of property owners.

Therefore, in accordance with the available evidence, it is considered that the known facts constitute

an infringement attributable to A.A.A. for violation of Article 6 of the GDPR as transcribed above.

VII

Qualification of the infringement of Article 6 of the GDPR and classification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 euros or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

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"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

VIII

Unfulfilled Obligation. Information to be provided when personal data is obtained from the data subject
Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of the controller's representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject prior to that further processing with information on that other purpose and any other relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this case, the video surveillance system has two signs, one located on the terrace of A.A.A.'s residence and another in a community parking space, hung on a post.

However, the aforementioned signs are not filled out. Consequently, they do not inform about the identity of the controller or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, violating what is established in Article 13 of the GDPR regarding the duty to provide information to data subjects at the time their data is obtained, which, in relation to video surveillance, Article 22 of the LOPDGDD provides through a "layered information" system.

Therefore, in accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violating the previously transcribed Article 13 of the GDPR.

IX

Classification of the infringement of Article 13 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, of

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an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"b) the rights of the interested parties pursuant to Articles 12 to 22;"

For its part, the LOPDGDD in its Article 71, Offenses, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute offenses."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious offenses and will be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

X

Warnings

When an infringement of the provisions of the GDPR occurs, among the corrective powers available to

the Spanish Data Protection Agency, as the supervisory authority, Article 58.2 of said Regulation includes the following:

“2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the controller or processor, may issue a warning.

In this case, given the nature of the facts and circumstances set forth in the preceding legal grounds, it is deemed appropriate to issue a warning to A.A.A. for each of the infringements of the aforementioned articles.

XI

Corrective Measures

Once the infringements have been confirmed, the resolution may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with the personal data protection legislation, in this case, Article 6.1 of the GDPR and Article 13 of the GDPR, in accordance with what is established in the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”

In this case, A.A.A. is required to, within one month from the date of the enforceability of the resolution concluding this procedure, adopt the following measures:

- Prove that it has reoriented the cameras towards its property, avoiding the capture of common areas or elements. If the reorientation is not sufficient to avoid capturing common areas or elements, it must prove the removal of the cameras, or, failing that, have authorization from the community of property owners.
- Prove that it has included, at a minimum, the following information on the informative signs alerting about the monitored area: the identification of the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in the data protection regulations.

It is warned that failure to comply with the orders of measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, the Presidency of the Spanish Data Protection Agency RESOLVES, FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1:

- For the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.
- For the infringement of Article 13 of the GDPR, classified in Article 83.5.b) of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 1 month from the date this resolution becomes final and enforceable, to prove compliance with the measures established in the legal ground XI.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly

file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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